

Applicable Law Acts

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User Query :

Yesterday I received a WhatsApp message saying that my bank KYC would expire that night. The sender used the bank's logo and sent me a link. I entered my customer ID, password and OTP on the page. Within a few minutes, ₹85,000 was transferred from my account through UPI and net banking. I later found out that the message and website were fake. What legal provisions may apply to this incident?

Job Id. : qwen3-30b/Scenario 1/Combined Act

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Date : 29 August 2026

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AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 66C

— Punishment for identity theft

The victim's password/OTP or another unique identification feature appears to have been fraudulently used.

Section 66D

— Punishment for cheating by personation by using computer resource

A fake bank identity, WhatsApp message and fake website were used to deceive the victim for financial gain.

Section 43

— Penalty and compensation for damage to computer, computer system, etc.

Relevant if the offender accessed or manipulated the victim's account/computer resource without permission.

Section 66

— Computer related offences

Relevant if an act covered by **section 43** was done dishonestly or fraudulently.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The strongest IT Act provisions are sections 66C and 66D. **Section 66C** concerns fraudulent or dishonest use of another person's password or other unique identification feature. **Section 66D** addresses cheating by personation through a communication device or computer resource. Sections 43 and 66 depend on proof of an unauthorised computer-resource act beyond the social-engineering step.

✓ STRENGTHS & RIGHTS

- 1 The facts expressly mention a fake bank identity, electronic communication, password/OTP capture and a resulting monetary transfer.

✗ RISKS & OBLIGATIONS

1

Electronic-evidence admissibility is governed principally by the BSA. Do not assume separate bank/body-corporate data-security liability without evidence of negligent security.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve the WhatsApp message, URL, device records, bank/UPI transaction records and complaint acknowledgements.

BHARATIYA NYAYA SANHITA (BNS), 2023

APPLICABLE SECTIONS

Section 318

(4) — Cheating and dishonestly inducing delivery of property

The deception resulted in a transfer of ₹85,000.

Section 319

— Cheating by personation

The offender represented the communication as coming from the victim's bank.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

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The core BNS theory is cheating: false representation induced the victim to act in a way that caused property loss. Personation is also strongly implicated because the offender pretended to act as the bank.

✓ STRENGTHS & RIGHTS

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The transfer of money after deception supplies a strong property-loss/inducement nexus.

✗ RISKS & OBLIGATIONS

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Do not use obsolete IPC numbers or non-existent BNS sections. Whether additional forgery provisions apply depends on proof that a false electronic record/document was made within the statutory definition.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. BNS supplies substantive offences; investigative procedure is governed by the BNSS, not by unrelated BNS section numbers.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 61 — Electronic or digital record

Electronic records are not denied legal effect merely because they are electronic/digital.

Section 62 — Special provisions as to evidence relating to electronic record

Electronic-record contents are proved in accordance with **section 63** .

Section 63 — Special provisions relating to electronic records

Relevant to proving WhatsApp messages, website captures and digital transaction records.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The BSA provisions are evidentiary rather than substantive offences. Sections 61-63 are the principal cluster for the WhatsApp message, website material and banking/UPI electronic records.

✓ STRENGTHS & RIGHTS

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Original messages/devices and transaction records can support authenticity and continuity.

X RISKS & OBLIGATIONS

- 1 Screenshots alone may invite authenticity challenges; preserve originals and metadata where possible.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Use the certificate/process required by **section 63** where applicable.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 On the stated facts, the immediate wrong is a third-party phishing/fraud attack. The scenario does not establish that the bank or another Data Fiduciary processed or disclosed the victim's personal data unlawfully, or that the bank itself suffered a personal-data breach.

✓ STRENGTHS & RIGHTS

- 1 Avoiding a forced DPDP citation improves precision where the facts concern a criminal phishing actor rather than Data Fiduciary processing.

X RISKS & OBLIGATIONS

- 1 DPDP provisions could become relevant if additional facts show unlawful processing, a Data Fiduciary security failure, or a reportable personal-data breach.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.
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